

him, his ability, parts, fitness for his place, are not to be reflected on, censured, defamed, or vilified by any other person, being allowed and stamp't with the *King's approbation*, to [139] whom only it belongs to judge of the fitness of his ministers.

And such scandalous assertions or inquiries upon the Judges of both Benches, is forbidden by the Statute of Scandalum Magnatum, 2 R. 2, c. 5. Nor must we, upon supposition only, either admit Judges deficient in their office, for so they should never do any thing right; nor on the other side, must we admit them unerring in their places, for so they should never do any thing wrong.

And in that sense the saying concerns not the present case.

But if any man thinks that a person concern'd in interest, by the judgment, action, or authority exercis'd upon his person or fortunes by a Judge, must submit in all, or any of these, to the implied discretion and unerringness of his Judge, without seeking such redress as the law allows him, it is a perswasion against common reason, the received law, and usage both of this kingdome, and almost all others.

If a Court, inferiour or superiour, hath given a false or erroneous judgment, is any thing more frequent than to reverse such judgments by writs of false judgment, of error, or appeals, according to the course of the kingdome.

If they have given corrupt and dishonest judgments, they have in all ages been complain'd of to the King in the Starr-Chamber, or to the Parliament.

Andrew Horne, in his mirror of justices, mentions many Judges punish't by King Alfred before the Conquest, for corrupt judgments, and their particular names and offences, which could not be had but from the records of those times.

Our stories mention many punish't in the time of Edward the First, our Parliament Rolls of Edward the Third's time, of Richard the Second's time, for the pernicious resolutions given at Nottingham Castle, afford examples of this kind: in latter times, the Parliament Journals of 18 and 21 Jac. the judgment of the ship-mony in the time of Charles the First, question'd, and the particular Judges impeacht. These instances are obvious, and therefore I but mention them.

In cases of returns too general upon writs of habeas corpus, of many I could urge, I will instance in two only.

One Astwick brought by habeas corpus to the Kings Bench, was return'd to be committed, per Mandatum Nicholai Bacon Militis, domini Custodis Magni Sigilli Angliæ virtute ejusdam Contemptus in Curia Cancellar. facti, and was presently bail'd.

[140] One Apsley, prisoner in the Fleet, upon a habeas corpus, was return'd to be committed, per considerationem Curie Cancellar. pro contemptu eidem Curie illato, and upon this return set at liberty.

In both these cases, no inquiry was made, or consideration had, whether the contempts were to the law Court, or equitable Court of Chancery, either was alike to the Judges, lest any man should think a difference might arise thence.

The reason of discharging the prisoners upon those returns, was the generality of them being for contempts to the Court, but no particular of the contempt exprest, whereby the Kings Bench could judge, whether it were a cause for commitment or not.

And was it not as supposeable, and as much to be credited, that the Lord Keeper and Court of Chancery, did well understand what was a contempt deserving commitment, as it is now to be credited, that the Court of Sessions did understand perfectly what was full and manifest evidence against the persons indicted at the sessions, and therefore it needed not to be reveal'd to us upon the return?

Hence it is apparent, that the commitment and return pursuing it, being in it self too general and uncertain, we ought not implicitly to think the commitment was re vera, for cause particular and sufficient enough, because it was the act of the Court of Sessions.

And as to the other part, that the Court of Sessions in London is not to be resembled to other Inferiour Courts of Oyer and Terminer, because all the Judges are commission'd here (which is true) but few are there, at the same time, and as I have heard, when this tryal was, none of them were present. However persons of great quality are in the commissions of oyer and terminer, through the shires of the Kingdom, and always some of the Judges; nor doth one commission of oyer and terminer differ in its essence, nature, and power from another, if they be general commissions; but all differ in the accidents of the commissioners, which makes no alteration in their actings in the eye of law.